

TERMS OF SERVICE & USER CONSENT

Closing Clarity — B2B Artificial Intelligence Multimedia Analysis Platform

IMPORTANT OPERATIONAL NOTICE: Closing Clarity is a commercial B2B productivity software platform. By creating an account, uploading media assets, or checking the consent box, your company ("User") enters into a legally binding agreement governing data privacy, ownership, and platform boundaries.

1. COMMERCIAL PURPOSE & PLATFORM SCOPE

Closing Clarity provides an automated, artificial intelligence-driven analysis tool that processes audio, video, and transcription data from sales interactions to deliver performance insights, metrics, and quality audits. This platform is strictly designed and licensed for commercial B2B use. Standard consumer protection regulations do not apply to transactions or usage under these terms.

2. DATA OWNERSHIP, AUTHORITY & INDEMNIFICATION

The User retains absolute ownership over all raw multimedia assets (audio and video recordings) uploaded to the platform. By uploading any data, the User explicitly warrants and represents that:

- The User possesses all required legal permissions, corporate authorizations, and regulatory consents to record, store, transmit, and analyze the uploaded communications.
- The User has obtained any required consent from employees, internal staff, external prospects, and clients featured within the recordings in accordance with applicable wiretapping, recording, and data protection laws.
- The User shall fully defend, indemnify, and hold harmless Closing Clarity, its developers, and affiliates against any and all third-party legal actions, financial liabilities, regulatory fines, or damages resulting from a violation of recording laws or unauthorized data uploads.

3. ARTIFICIAL INTELLIGENCE DATA PROCESSING & ARCHITECTURE

Closing Clarity utilizes advanced third-party machine learning models, specifically including OpenAI API endpoints (such as GPT-4o), to process transcripts, generate scoring metrics, and build analysis reports. The User explicitly acknowledges and agrees to the following architectural conditions:

- Uploaded data is securely transmitted to downstream third-party sub-processors via zero-retention commercial API gateways.
- Data transmitted through these secure API endpoints is explicitly configured to prevent its utilization in training public machine learning models.
- Closing Clarity holds no liability for anomalous behavior, deterministic errors, or factual inaccuracies (hallucinations) produced by underlying third-party large language models.

4. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, in no event shall Closing Clarity, its developers, or infrastructure providers be held liable for any indirect, incidental, punitive, or consequential damages, including but not limited to loss of business profits, internal team disputes, employee termination, or client churn resulting from performance scores or audit reports. The total aggregate financial liability of Closing Clarity for any single claim shall be strictly capped at the total amount paid by the User to the platform during the immediate twelve (12) months prior to the dispute event.

5. TERMINATION & BILLING ADJUSTMENTS

Subscriptions automatically renew at the conclusion of each billing period. Access permissions are granted immediately upon credit card charge verification via Stripe Billing. Users may cancel their plans at any time via the self-serve customer billing portal. All transactions are commercial and final; Closing Clarity enforces a strict zero-refund policy for partial monthly usage or mid-cycle cancellations. Access will remain active through the end of the current paid billing cycle.

MANDATORY APPLICATION AGREEMENT

This text must be displayed directly alongside account creation or file processing confirmation gateways:

- ☐ **I acknowledge that Closing Clarity is a B2B productivity tool and agree to the Terms of Service.**
- ☐ **I explicitly warrant that I have the required corporate authority and legal consents to upload these sales records for automated AI data analysis and third-party API processing.**